

The Claremont City Council held a meeting on Wednesday, September 8, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:04 p.m.

Members of the Council present:

Ward I Councilor Andrew O'Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars, Texas, alone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois, home, alone
Ward III Councilor Jonathan Stone

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau to enter Nonpublic Session pursuant to RSA 91-A:3,II(a) – Personnel, and to invite City Manager Ed Morris into the session.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Entered nonpublic session at 6:05 p.m.

Description of matters discussed: MRI contract and professional development.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to exit the Non-Public Session.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Public session reconvened at 6:30 p.m.

Note: The Non-Public Session minutes were recorded by Councilor Stone.

Mayor Lovett asked for a motion to be made regarding entering into a contract with MRI for the purposes of a professional development opportunity between John MacLean as the person providing the professional development and City Manager Morris. A final copy of the contract will be available for public observation tomorrow afternoon.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to approve this professional services agreement between MRI and the City of Claremont in the amount of \$6,500.00.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Councilor Girard to accept the minutes of the August 18, 2021, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - abstain

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, with 1 abstain.

A motion was made by Councilor Koloski and seconded by Councilor Matteau to accept the minutes of the August 25, 2021, City Council meeting, as amended.

Councilor Girard said on page 1 that the Finance Director’s name should be changed from Mary Walter to Lisa Richmond.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - abstain

Stone - yes

Lovett - yes

Motion carried 8-0, with 1 abstain.

MAYOR’S NOTES

National Recovery Month Proclamation

Mayor Lovett presented a National Recovery Month proclamation to Gail Moeller, TLC.

Ms. Moeller, Certified Recovery Support Worker, gave some information about what TLC offers including that the support is provided at no charge and the program is confidential.

Mayor Lovett said that TLC will have two events: 1) September 12, 1 p.m.-4 p.m. at Arrowhead and, 2) September 25, 6 p.m.-10 p.m. at REMIX.

Mayor Lovett said after thoughtful consideration, she will not run again for Mayor. At the end of this term, she will have served 8 years on the Council with 6 years as Mayor. She thanked the community for its confidence in her. She said September 15-24 is the filing period for anyone wishing to be on the ballot for City Council for the November election. Sign up costs \$1 at the City Clerk's office.

Mayor Lovett said September 11th is Saturday and she encouraged people to think about that event and to thank all who put their lives on the line and who are in harm's way. This year marks the 20th anniversary. Councilor Matteau talked about how our nation came together at that time. Now we are fighting another enemy with COVID, and she hoped the country would come together again.

CITY MANAGER'S REPORT

- **VOC Groundwater Monitoring** – As you know, the New Hampshire Department of Environmental Services (DES) has been conducting ground water testing on Mulberry Street to determine the source of elevated Volatile Organic Compounds found in the water below ground. The City has been contacted and has agreed to allow DES to set up testing sites in the rights-of-way on Tyler Street, Mulberry Street, and Pearl Street as they continue to try to identify the direction of flow, and ultimately, the site of contamination causing these elevated levels.
- **TAP Grant** – Announced that the Claremont Transportation Alternatives Program (TAP) application had a ranking of 1 out of 34 and has been recommended to the Governor's Advisory Commission on Intermodal Transportation (GACIT) for funding at their September 1, 2021 meeting. All project recommendations will also be included in the Draft Plan that will be released in September. Through adoption of the Ten-Year Plan then actions by the Governor and Legislature, TAP recommendations will become final. Until formally approved, the list of projects recommended for funding may be changed by GACIT, the Governor and/or the Legislature. Final approval is anticipated in June 2022. Funding for projects that are approved, and part of the 2023-2032 State of NH Ten Year Plan, will be available starting in October, 2022 (Federal Fiscal Year 2023).

He thanked Nancy Merrill who put this grant together with collaboration of Planning, Public Works and Parks & Recreation Departments.

- **Mountain Biking Event** - With the recent success of the Eastern States Cup at Arrowhead Recreation Area, the University of New Hampshire's (UNH) Mountain Bike Team has selected Claremont as their desired location to host a Collegiate Cycling

Championship. The Parks and Recreation Department is currently working out the logistics with the UNH Cycling Team to bring this event to Claremont the weekend of October 9th and 10th, with events being held at both Arrowhead Recreation Area and Moody Park. They are anticipating that approximately 150 cyclists will attend and most athletes will enter multiple disciplines of mountain biking.

- **Camera Update** - currently there are 67 security cameras installed throughout the City at the following locations:
 - City Hall - 5 Cameras
 - Police Department - 16 Cameras
 - Fire Department - 1 Camera
 - Fiske Free Library - 1 Camera
 - Parking Garage - 22 Cameras
 - DPW - 2 Cameras
 - Water Street - 2 Cameras
 - Pleasant Street - 1 Camera
 - Green Mountain - 3 Cameras
 - Visitor Center - 2 Cameras
 - CSB Community Center - 9 Cameras
 - Broad Street Park - 1 Camera
 - Monadnock Park - 1 Camera
 - Riverside Park - 1 Camera

We are also planning to install the following 5 additional cameras:

- Monadnock Park - 1 Camera
- Barnes Park - 3 Cameras
- Parking Garage - 1 Camera

Police Chief Mark Chase said the cameras feed into the Communication Center. They are valuable tools for the Police Department.

Councilor Koloski asked about software and retention in regard to things such as graffiti on the bridge. Chief Chase said the cameras are recording all the time and that there are certain time retentions.

Councilor Koloski asked about cameras in the Pleasant Street plans. Chief Chase said the City is limited where cameras can be placed. They have to be on a City asset, to be used for the protection of City assets. Councilor Koloski asked Mr. Morris what is planned on Pleasant Street. Mr. Morris said he doesn't believe there are cameras in the Pleasant Street plan, but he will look at it. Chief Chase said a camera in the parking lot behind Pleasant Street would be beneficial.

- **Parking Garage Update** – He has asked the Police Department to increase patrols in and around the parking garage, in an effort to deter unwanted activity. In addition to an

increased Police presence, the City has increased monitoring of the parking garage. He has asked DPW to drive through the parking garage weekly to monitor cleanliness and to check for obvious damage or maintenance issues. Also, he has asked DPW to complete a thorough check of the garage at least monthly to ensure the parking garage is being taken care of properly. In addition to increased monitoring of the parking garage, the City has met with the current cleaning contractor, to formally express the need for increased cleaning efforts. We also expressed our expectations for the future, if we are to continue working under the current cleaning contract.

- **Current Use Phase 2 Process** – In the event a property owner does not comply with the City's request for appropriate documentation, another letter would be sent requesting the same, and the Assessing department would try to find other ways to contact the property owners. At some point, if there is a lack of compliance or communication, the City will remove the affected land from the Stewardship category (not from Current Use altogether). This would result in a higher value per acre in the Unmanaged category. The City does not make changes lightly; attempts are made to enlighten involved parties as to the what State Law requires, and what effect any changes would have.
- **Union Negotiations** – The City has been contacted by IAFF Local 1571 and Teamsters Local 633 to start the negotiation process. The City will be starting negotiations with IAFF Local 1571 on Wednesday, September 8, 2021, and will be coordinating dates with the Teamsters Local 633.
- **Pleasant Street** – The sewer line work through Opera House Square has gone slower than anyone expected. B.U.R. Construction has made arrangements to work on Labor Day, and, moving forward, will be working Saturdays in order to make sure they stay on schedule to complete utility work this fall. The construction work will again be moving onto Pleasant Street to continue the sewer line work. The City continues to monitor traffic through and around the project, and will continue to work with McFarland Johnson to keep traffic patterns and markings as safe as possible.

Bluff paving starts tomorrow morning.

October 2 is the Chili Cook-Off and Stevens Alumni Parade.

September 18 is the Kiwanis Brewfest.

COVID-19 Update

- **COVID-19 Update** – Over the past week, Claremont has had a decrease in active COVID-19 cases. As of the time of this report, Claremont has 20 active cases, down from a high of 47 active cases.

The City continues to follow the CDC's current recommendation that all people, including those that are fully vaccinated, wear a mask in public indoor settings in areas of substantial or high transmission. Sullivan County, along with all counties in the State of New Hampshire, continue to have substantial transmission rates. I will be keeping this recommendation in effect until Sullivan County has held a moderate transmission rate for two weeks.

Experts recommend that the best way to protect yourself from COVID-19 and the Delta Variant is to get the COVID-19 vaccination, which is still over 90% effective against this variant. The City encourages residents to get vaccinated and to wear masks in accordance with CDC guidelines:

- The City hosted a vaccination clinic at the Claremont Savings Bank Community Center (CSBCC) on August 31, 2021 from 10:00 AM – 1:00 PM, in which 10 people participated.
- The City currently has a tentative vaccination clinic scheduled for early October, that will be held at the Claremont Fire Station.

Today there are 24 active cases in Claremont.

He noted that there were actually 13 people vaccinated at the CSBCC, not 10 as he had reported earlier. The Fire Department will, tentatively, host a vaccination clinic in October and CSBCC will host a vaccination clinic on September 17, 10 a.m.-1 p.m.

Councilor Koloski asked if the snowmobile that was mentioned in the Police Department Report was a shared item. Mr. Morris said he knows the Police Department has one that they may share with the Parks and Recreation Department.

Councilor Koloski asked who designed the vacuum truck. Alex Gleeson, Public Works Director, said all the people who use and work on it gave their input.

Mayor Lovett read from the Fire Department Report regarding the Civil Air Patrol training teenagers to fly glider planes. She gave a shoutout to Fire Chief Burr, and whoever assists him, as this type of event helps put Claremont on the map. She talked about the new Call Firefighter in the Fire Department and the new hires in the Police Department. She said the new data included in the Welfare Department Report for housing was interesting and useful.

APPOINTMENT TO BOARDS AND COMMITTEES

Electric Aggregation Committee

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to appoint Rebecca MacKenzie to seat 3 of the Electric Aggregation Committee.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

At 7:19 p.m., Councilor Matteau left Council Chambers.

A motion was made by Assistant Mayor Damren and seconded by Councilor O'Hearne to appoint Jessica Ball to seat 5 of the Electric Aggregation Committee.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - abstain

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0, with 1 abstain.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Station Host Program Proposal

Mr. Morris said he worked with Ms. Richmond to determine that the City can fund the Station Host Program through an ad hoc committee or put the money into a department line item. Either way, if the Station Hosts wanted to do fundraising, a line item could be created for those funds. He reached out to the Station Hosts, and Walt Stapleton said they would prefer to go through a department line item.

At 7:22 p.m., Councilor Matteau returned.

Mr. Morris made a recommendation that the Council authorize \$2,500 to support the Station Host Association of Claremont NH, this money to come from the already approved FY 2022 budget. Moving forward, he would like to put this and other items into a Transportation line item in the Planning and Development Department budget.

Walt Stapleton, Ward 3 resident and Secretary Pro-tem for the Station Host Association of Claremont NH, said they would prefer a line-item approach. They would submit request approvals before making purchases.

There was discussion about how this would work and that it would be similar to Arrowhead, whose funding comes from the Parks and Recreation budget. Chuck Allen, Arrowhead Recreation Club, confirmed that they are a 501(c)3.

There was a discussion about some Councilors preferring to have an ad hoc committee.

It was pointed out that the City owns the Arrowhead property, however, there is a lease agreement for the Amtrak pavilion.

There was a discussion about fundraising and Ms. Richmond said that as the group exists now, donations would not be tax deductible. However, the City has the ability to take restricted donations and donations made to the City could be tax deductible.

Mr. Morris said items such as benches, could be invoiced to the City and then they would become City assets.

Regarding liability, Mr. Stapleton said the Station Hosts are volunteers and they sign a waiver through Amtrak.

At 7:46 p.m., Councilor Demars left the meeting.

Regarding the lease agreement, Mayor Lovett said that John Lambert is leasing to the City the land the pavilion sits on.

Regarding liability, Councilor Stone suggested contacting Primex.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to authorize \$2,500.00 to support the Station Host Association of Claremont NH, to be allocated to the Planning and Development Department in the General Fund budget.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

NEW BUSINESS

Property Maintenance Policy Discussion

Councilor Stone said the Policy Committee reviewed the Property Maintenance Policy. Mr. Morris said he took it to the NICE (Neighborhood Improvement through Code Enforcement) Committee before it went to the Policy Committee. It will need extensive legal review if Council approves it to move forward.

There was discussion about the word “delete” being used multiple times in the document and that that is how it is currently written in the ordinance.

It was suggested in order to not be too specific in the ordinance to maybe use the wording “most recently adopted international property code.” Steve Coombs, Chief Building Inspector, joined the meeting via Zoom, said that the first sentence states “The International Property Maintenance Code 2021, and any amendments, revisions and re-adoption thereto, is hereby adopted by reference.” He said this property maintenance code is adopted by the City, but is not a state code.

Regarding section 28, Mr. Morris said it is what would protect the building, to make sure it is water tight.

After discussion, Council concurred this should go forward to legal.

Private Lead Water Line Replacement Discussion

Mr. Gleeson talked about using \$500,000 grant money for phase 2 of getting the lead out of the City’s water system. The City has been working on replacing lead service lines in the Bluff area and the costs have been between \$1,300 to over \$3,300, with an estimated average of about \$2,400 per service line. The City is proposing to use up to \$3,000 per line for lead service line removal. Anything over \$3,000 would go on the property water bill at 0% interest for 1-3 years.

Mr. Morris said the \$500,000 grant would be used to help offset the cost of City staff time.

There was discussion about people who have already paid to have this work done and a suggestion to ask if the grant can be applied retroactively.

Mr. Morris said if the City is replacing the water line on City property and the line is cut, the City cannot reconnect the line to a lead service line. The grant funds would be open to anyone in the City.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to table this to the next meeting.

Roll call vote:

O'Hearne - yes

Girard - no

Damren - no

Matteau - no

Koloski - no

Contois - no

Stone - yes

Lovett - no

Motion failed 2-6.

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau to authorize the use of up to \$3,000.00 per property to come from NH Drinking Water & Ground Water Trust Fund (DWGTF) to help offset the cost of replacing private lead water service lines throughout the City (to have no impact on the tax rate). This can be utilized retroactively from 2017, on, if allowed by DES.

Mayor Lovett said 2017 is when Operation Get the Lead Out was started.

Roll call vote:

O'Hearne - no

Girard - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - no

Stone - no

Lovett - yes

Motion failed 4-4.

A motion was made by Councilor Matteau and seconded by Councilor Koloski to authorize the use of up to \$3,000.00 per property to come from NH Drinking Water & Ground Water Trust Fund (DWGTF) to help offset the cost of replacing private lead water service lines throughout the City (to have no impact on the tax rate).

Roll call vote:

O'Hearne - no

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 6-2.

Council directed the City Manager to investigate whether or not the funds could be used retroactively to 2017.

Drinking Water and Groundwater Trust Fund Grant

Mr. Gleeson explained that this is an application to apply for the grant.

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to authorize the City Manager, or his designees, to apply to the New Hampshire Drinking Water and Ground Water Trust Fund assistance program for \$1,036,000.00, which is 40% of the estimated amount for Phase 3 (\$2,590,000.00) for lead removal from the City's water system and water system improvements.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-1.

Transfer Station Ad Hoc Committee Discussion

Mayor Lovett said she chaired this committee in 2014 and 2015. A report, as well as long and short-term goals were submitted to the Council on October 28, 2015. It is time to revisit the report.

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to reactivate the Transfer Station Ad Hoc Committee in its original composition and mission statement.

Mayor Lovett said the Committee was made up of five members. There was one Councilor seat and the rest were public.

Councilor Contois asked that the Council receive a copy of the report referenced by Mayor Lovett.

Mayor Lovett recommended following the same format: preliminary report to the Council (findings at that time), investigation, research, where succeeded with previous recommendations, then submit final report for Council review.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

City Debt Discussion

City Debt				
Bond Name	Principal and Interest (P&I)	Debt Payment Structure	Maturity Date	Original Bond Amount
2011E Infrastructure- North & Main, Drapers Corner and new Community Ctr	\$438,868.76	Declining P&I	FY 2041	7.5 million
2016A Infrastructure (paving city wide)	\$124,125.00	Declining P&I	FY 2031	1.5 million
2021A Pleasant St and Dispatch	\$337,125.30	Declining P&I	FY 2041	5.8 million
CDFA (LED Lights)	\$13,471.71	Declining P&I	FY 2022	\$51,730

CS-330114-09 Landfill closure	\$227,389.74	Level P&I	FY 2023	3.4 million
2007B Downtown TIF	\$323,275.00	Declining P&I	FY 2028	5 million
2007B Downtown TIF	\$323,275.00	Declining P&I	FY 2028	2.7 million

Ms. Richmond gave some background on the bonds. In 2024, there will be additional capacity if the Council would like to bond something else.

Councilor Contois asked when the bonds retire, if the money for the yearly payments can be used for roads.

Ms. Richmond said yes, however there are many wants and needs for the City and that the CIP (Capital Improvements Plan) should be looked at.

Mr. Morris said as the bonds retire, the City will bring options to the Council. One of his plans is to put a bond chart in the budget book each year. The information will also be included in the Finance Director's Report.

Ms. Richmond said debt sheets are included in the Finance Report to the Council every month; that includes the Enterprise Funds as well.

Departments Efficiency Study & Strategic Planning Discussion

In the Council packet, Mr. Morris had included a memo stating that he is gathering information from consulting firms on having an operational efficiency assessment completed and to conduct a strategic planning session with the City Council.

Mr. Morris talked about strategic planning costs and about an operational efficiency study. He said with Sojourn, strategic visioning could be done for about \$11,000 and if Council wanted to include an operational efficiency study, that would be in the \$125,000-\$165,000 range. He said it appears the City will have more than that amount to be added to fund balance.

After discussion, Councilors agreed that this type of study would be good, but the salary study needs to be addressed before taking on a new study. With the potential of having the money in the budget, perhaps this can be looked at by the incoming Council.

Mr. Morris will move forward to get more information for strategic planning and he will put together a plan for IT.

COMMITTEE REPORTS

Mayor Lovett asked the Policy Committee to review the ordinance for the Transfer Station. Councilor Stone said they will look at it.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Matteau asked for a cost analysis between having an onsite attorney versus contract attorney. Mr. Morris said he can get that and that it is important to put in what we're losing by not having an attorney on staff. Also, there are benefits to having contracted legal counsel.

Councilor Koloski asked for a running tally of legal expenses.

Regarding Councilor Koloski's question about the AEDs, Mr. Morris said the Fire Department checks those and they are all up to date.

Councilor Stone asked about bi-weekly pay periods. Mr. Morris said that has been negotiated into one contract and will be proposed in the others.

Mayor Lovett would like to see a review of the Whitewater water shed plan as one of the recommendations from October of last year was to have it reviewed annually.

Mayor Lovett asked for a repository for financial policies. Mr. Morris said that Ms. Russell is working to get all of the policies together so they can be posted on the website.

Mayor Lovett said the LSR filing period is September 13-17 for the House for the removal authority for the Police Commission.

Councilor Koloski asked about making the minutes on the website searchable. Mr. Morris will look into that.

Mayor Lovett asked about what can be done about vacant property registrations. Mr. Morris said that's something that is being done across the country. He looked into it with NHMA and the City does not have that authority. It might be good to take to the legislature.

Councilor Koloski asked for an update on the wall between the buildings at 147 Main Street. He wants to know what the City is paying for and the timeline for completion. Mr. Morris will put the information into his City Manager's Report for the next meeting.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:50 p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Matteau to adjourn.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council